

Data Processing Agreement

1. Parties

This Data Processing Agreement ("Agreement") is entered into between Cascade Cloud Services Inc. ("Processor") and Client ("Controller"), effective as of the Effective Date of the underlying services agreement.

2. Payment Terms

2.1 Controller shall pay all fees within ten (10) days of invoice date. 2.2 Processor may suspend all data processing services, including access to Controller's own data, immediately upon any late payment, without prior notice.

3. Confidentiality

3.1 Processor shall maintain confidentiality of Controller's data using industry-standard safeguards. 3.2 These obligations survive for five (5) years following termination.

4. Limitation of Liability

4.1 Processor's total liability for any data breach, loss, or mishandling shall not exceed one month's fees, regardless of the scope or severity of the incident. 4.2 Controller's liability to Processor for any claim is uncapped.

5. Indemnification

5.1 Controller shall indemnify Processor against any claim arising from the data provided by Controller, including claims arising from Processor's own handling of that data. 5.2 Processor shall indemnify Controller only for claims arising from Processor's fraud, a narrower standard than gross negligence.

6. Termination

6.1 Either party may terminate this Agreement upon thirty (30) days' written notice. 6.2 Upon termination, Processor shall return or delete Controller's data within sixty (60) days.

7. Assignment

7.1 Processor may subcontract or assign its processing obligations to any affiliate or third party without Controller's consent, provided reasonable notice is given. 7.2 Controller may not assign this Agreement without Processor's prior written consent.

8. Force Majeure

8.1 Processor is excused from performance during force majeure events, including outages at sub-processors, for an indefinite period without liability to Controller.

9. Dispute Resolution

9.1 The parties shall first attempt good-faith negotiation. 9.2 Unresolved disputes proceed to binding arbitration in a venue of Processor's choosing, with each party bearing its own costs.

10. Governing Law

10.1 This Agreement is governed by the laws of the State of Nevada.